between

Fundsquare S.A.

and

[Boundless S.à r.l.]

as Client

AGREEMENT

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This [client] agreement (the "**Agreement**") is made on [12/06/2025], between:

(1) **Fundsquare S.A.**, a "Société Anonyme" organised under the laws of the Grand Duchy of Luxembourg, having its registered office at 6 Boulevard des Lumières, 4369 Belvaux, Luxembourg, and registered with the Luxembourg Register of Commerce and Companies under n° B 177901 (hereinafter "**Fundsquare**");

(2) [Boundless S.à r.l.] organised under the laws of [Luxembourg] having its registered office at [24 rue Goethe, L-1637, Luxembourg] and registered with [the Luxembourg Trade and Companies Register] under n° [B287864] and with VAT n°[LU36163730] (hereinafter the "**Client**").

The parties listed above are hereafter referred to collectively as the "**Parties**" and individually as a "**Party**".

WHEREAS:

(A) Fundsquare, a member of the FE fundinfo group, is the owner of a dedicated infrastructure (the "Platform") that is utilised by clients to drive efficiency registration, regulatory requirement, disclosure data and documents in the cross-border fund distribution processes.

(B) The Platform is accessible, amongst other means, through Fundsquare (www.fundsquare.net or www.e-file.lu), providing a range of services to the fund industry or any other companies interested in the services provided. It assists sector professionals with meeting regulatory and reporting requirements imposed by home and host national competent authorities. This assistance covers the collection, management and dissemination of reporting, data and documents as well as the provision of tools, applications, forms and templates.

(C) The Client wishes to use the services offered by Fundsquare for the needs of its business in consideration of the payment of a fee to Fundsquare.

(D) Fundsquare and the Client agree to enter into this Agreement under the general terms and conditions set out in this Agreement.

(E) The Client acknowledges that, before concluding this Agreement, Fundsquare has supplied it with all the prior information required to understand the operation and the advantages that may be derived from the use of the Platform, as well as the limits of the system. The Client acknowledges that it has the capability, particularly the technical capability, necessary to analyse the Fundsquare proposal. The Client acknowledges that it is its sole responsibility to verify that the Platform fulfils its requirements.

NOW THEREFORE, the Parties hereto agree to the following terms and conditions:

1. Definitions and Interpretation

1.1. Definitions

In this Agreement, the following words and expressions will have the meaning resulting from the following definitions:

"**Applicable Laws**"	means all applicable laws, legislation, regulations, rules, national instruments, policies, guidelines, including, without limitation, any provisions with respect to privacy, data protection, securities, insurance, banking and anti-money laundering, and all regulatory provisions laid down by the various supervisory and/or State authorities concerned;
"**Authorised Users**"	means those employees, agents and independent contractors of the Client who are authorised by the Client to use the Services;
"**BCL**"	means Banque Centrale du Luxembourg, which is the Luxembourg Central Bank;

"**Beneficiary**"	means the investor who wants to subscribe/redeem units of funds distributed by the Distributor and places the related subscription/redemption order with the concerned Transfer Agent through the Distributor;
"**Certificate**"	means an electronic professional certificate issued by a certification authority, namely LuxTrust S.A. (www.luxtrust.lu), the use of which is subject to the conditions of use laid down by LuxTrust S.A.;
"**Claim**"	means any claim or number of claims of the Client resulting from the same event of a breach of an obligation of Fundsquare under this Agreement.
"**CSSF**"	means Commission de Surveillance du Secteur Financier, the Luxembourg regulator;
"**Data Protection Law**"	means the EU General Data Protection Regulation (GDPR – Regulation (EU) 2016/679) on the protection of natural persons with regards to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC, as amended, supplemented or replaced from time to time as well as any Applicable Law in Luxembourg implementing the GDPR;
"**Distributor**"	means a distributor of investment funds;
"**Force Majeure**"	means any external, unpredictable and irresistible event which is considered as preventing one or both parties from fulfilling their obligations under the Agreement under Luxembourg law or case law as well as any other events beyond the reasonable control of the parties, including, but not limited to, acts of god (including fire, flood, earthquake, storm, hurricane or other natural disaster), war, invasion, act of foreign enemies, hostilities (regardless of whether war is declared), civil war, rebellion, revolution, insurrection, military or usurped power or confiscation, terrorist activities, nationalisation, government sanction, blockage, embargo, labour dispute, strike, lockout or interruption or failure of electricity or telephone service;
"**Fund Information**"	means the fund facts documents which are created by the Fund Promoter for its respective funds, as required by law, and which are available on Fundsquare;
"**Fund Promoter**"	means an initiator/sponsor of investment funds;
"**Good Industry Practice**"	means in respect of any activity, performing that activity effectively, reliably and professionally in good faith and in a prompt and timely manner using the degree of skill, care, diligence, prudence, foresight and judgement which would reasonably be expected from a skilled, experienced professional user engaged in the use of the Services;
"**Improper Use**"	means any accidental disclosure, unauthorised or fraudulent use of the Registration Information;
"**Materials**"	means all information, data, forms, templates and materials available in the Platform;
"**Order**"	means the electronic data (a message, a file or a group of files using a format supported by the Platform, as per Fundsquare specification) related to a specific order placed by a Beneficiary and that is intended to be sent from the Distributor to the Transfer Agent using the Platform;
"**Package**"	means a bundle of Services;
"Personal Data"	means any information related to an identified individual or that may allow directly or indirectly to identify an individual (e.g. the Client's employees, agents and/or representatives' names, phone numbers, email addresses, job titles). Personal Data does not include any information or data related to legal entities (e.g. investment funds, securities issuers…);

"**Platform**"	means the Fundsquare platform as accessible, amongst other means, through the following Internet sites: www.fundsquare.net and www.e-file.lu;
"**Price**"	means the costs and fees to be paid by the Client to Fundsquare for the provision of the Services;
"**Process**"	means any operation that can be managed through the Platform;
"**Registration**"	means the registration of the Client by a login and password, including, for specific Services only, by using a Certificate;
"**Registration Information**"	means all information regarding any access codes, passwords and/or confidential elements of the Client's LuxTrust card/certificate, which are necessary for Registration purposes;
"**Report**"	means the electronic data (a message, a file or a group of files using a format supported by the Platform, as per Fundsquare specification) related to specific Reporting and that is intended to be sent from the Transfer Agent to the Distributor through the Platform;
"**Reporting**"	means any type of reporting from the Transfer Agent to the Distributor carried out automatically or manually through the Platform;
"**Services**"	means those services and standards updated from time to time and designated by the Client in writing in accordance with Fundsquare's then current designation policy and shall always include those services and standards designated from time to time by Fundsquare with respect to security and access to the Platform and which facilitate secure electronic communications between the Parties. The Services are set forth in Appendix 1;
"**Transfer Agent**"	means the entity appointed by an investment fund to administer the issue, conversion and redemption of its units, the maintenance of its records and other related administrative functions;

1.2. Interpretation

Titles of the clauses are only inserted for practical reference reasons and will be ignored for the interpretation of this Agreement.

A reference to a document is a reference to that document as modified or replaced from time to time.

Terms defined in the singular shall have a correlative meaning when used in the plural and vice versa.

The original version of this Agreement has been drafted in English. Should this Agreement be translated into French, German or any other language, the English version shall prevail among the Parties to the fullest extent permitted by Luxembourg law.

2. Scope

The purpose of this Agreement is to govern the use of the Platform and provision of all Services as well as the Materials.

The content and scope of the Services, which are generally offered in a Package, are described in the relevant service description set forth in Appendix 1 and Appendix 2 that together with the present agreement constitute the entire Agreement between Fundsquare and the Client.

The Client acknowledges and agrees that:

(i) Fundsquare does not provide investment advice and that nothing on the Platform shall be construed as investment advice, an offer and/or the solicitation of an offer to buy, sell or hold securities, investment instruments or conclude any other transactions;

(ii) Fundsquare does not recommend any financial product(s) or service(s), nor the subscription to, sale, purchase or holding of, any financial product(s) or service(s); and

(iii) any investment or any other decisions shall not be based only on information available on the Platform. The Client should not make any investment decision without having obtained prior advice from a qualified expert.

3. Priority

Fundsquare and the Client expressly agree that the Agreement shall take precedence over any additional terms and conditions of the Client. Therefore, notwithstanding any clause to the contrary in the general terms and conditions of the Client, or in any other document issued by the Client, the Client by accepting the Agreement waives any clause of its general terms and conditions which could be contrary to, inconsistent with, or deviate from any provisions of the Agreement.

The use of the functionalities and applications offered through the Platform (including - without limitation - collection, dissemination and consultation services), is subject to, not only entering into the Agreement, but also to compliance by the Client with the Applicable Laws.

4. Initial Access to Services/Platform

Initial access to the Platform and the Services is subject to:

(i) the entering into the Agreement by Fundsquare and the Client;

(ii) the prior provision by the Client to Fundsquare of all information requested under the Agreement, as well as any additional information that might be requested by Fundsquare from time to time, and provided that such information is complete, accurate and considered as satisfactory by Fundsquare;

(iii) the proper installation and compliance with installation procedure(s) provided by Fundsquare of all relevant software required to ensure access thereto;

(iv) the Registration; and

(v) the prior payment by the Client of the fixed/flat yearly fee, if applicable, as determined under the Agreement.

5. Access to Services

Use of Services and access to the Platform requires Registration by the Client. Specific Services such as services regarding the filing of documents requires a Certificate.

6. Availability of Services

Fundsquare provides the Services within the bounds of its technical and operational competencies and in so far as the equipment (this term including both the hardware, software and operating systems) of the Client is suitable, maintained, not outdated, functions properly and is legally compliant.

Fundsquare provides a high level of availability of its Services and makes all reasonable efforts to ensure the greatest possible availability of the Platform and Services, but cannot guarantee that the Platform and Services will be available without any interruption or malfunction.

Fundsquare reserves the right to develop, modify or suspend the availability and operations of its Services, if this is necessary in connection with capacity limits, the safety or integrity of its servers, or for the performance of technical measures, and this leads to the correct or improved rendering of services (maintenance work).

Where possible, if it is foreseeable that the Platform and/or Services will be unavailable – or only available to a limited degree – for use for a particular period of time, Clients will be informed of this unavailability in advance.

In the event of a system failure, Fundsquare will make all reasonable efforts ("obligation de moyens") to rectify this as quickly as possible, according to what is possible in the circumstances.

No guarantee is given by Fundsquare about the availability, quality, operation or support for data traffic on the networks or lines of Internet service providers.

Fundsquare may change the format and content of the Platform at its sole discretion and at any time without notice, being understood, that Fundsquare usually informs Clients prior to such changes, and more specifically when material changes will be made. The Clients should refresh their browser each time they visit the Platform to ensure that they access the most up-to-date version and any information contained therein.

7. Costs & fees, payment

The costs and fees for the provision of the Services by Fundsquare are based on the Package(s) chosen by the Client in accordance with the service description and selection in Appendix 1 as amended from time to time. They are set forth in Appendix 2.

All amounts are in Euros and exclude VAT and any applicable tax. VAT and any applicable tax will be charged, if applicable, at the time of the issuance of invoices to the Client.

Where a Service implies a fixed/flat yearly fee, this amount will be invoiced by Fundsquare in advance for the use of the Platform and Services. The fixed/flat yearly fee applies whether or not the Client uses the Platform and/or Services during the year. Fixed/flat yearly fees are non-refundable.

Where a Service implies a fee based on consumption or a fee based on estimation, invoicing is established either on a quarterly or on a yearly basis. When a fee is based on estimation, Fundsquare will issue an adjusted invoice on the basis of the Clients' real consumption either on a quarterly or on a yearly basis, depending on the Services selected by the Client (Appendix 1).

All invoices shall be paid no later than thirty (30) days from their receipt by the Client, in accordance with the instructions contained therein.

The Client may raise objections to invoices within thirty (30) days as of their issuance, by registered letter to Fundsquare stating the detailed reasons for the objections raised and the disputed amount. Should the Client fail to do so, the invoice shall be considered as accepted by the Client. The part of the invoice regarding the undisputed amount shall also be considered as accepted as of the end of the above-mentioned time period.

During the term of the Agreement, the Client may change to a different Package than the one initially chosen by him. The fixed/flat yearly fee already paid cannot be reimbursed if the Client changes to a Package subject to a lower fee. If the Client changes to a Package subject to higher fees, the difference in fees is payable as soon as the change is effective.

In the event of late payment interest may be chargeable on any amounts overdue at a rate of EURIBOR + 5% per annum. The interest period shall run from the due date of the payment until receipt of the full amount by Fundsquare, without prejudice to any other right or remedy of Fundsquare.

In the event of any payment being delayed for a period of more than two months, Fundsquare may terminate the Agreement without delay by registered letter, with acknowledgement of receipt sent to the Client.

Fundsquare may change at any time and at its sole discretion the prices of the Services. The Client shall be notified of any changes thirty (30) days prior to the changes becoming effective. Should the Client oppose a change, the Client is authorised to terminate the Agreement within thirty (30) days as of the date of the notice sent by Fundsquare by registered letter with acknowledgement of receipt stating the reasons for the termination, failing which, the Client shall be irrevocably deemed to have consented to the change.

8. Amendments

Fundsquare may change at any time and at its sole discretion:

(i) all or part of the Platform to the extent that such changes do not jeopardize the provision of the Services; and

(ii) the conditions of access to the Services, provided that, such change guarantees at least the same level of security as rendered prior to the change.

The Client may have to adapt its equipment (this term including the hardware, software and operating systems) and shall bear the cost of this required change.

The Client shall be notified of any amendment thirty (30) days prior to the amendment becoming effective. Should the Client oppose an amendment, the Client is authorised to terminate the Agreement within thirty (30) days as of the date of the notice sent by Fundsquare by registered letter with acknowledgement of receipt stating the reasons for the termination, failing which, the Client shall be irrevocably deemed to have consented to the change.

9. Client's representations and warranties

The Client hereby represents and warrants to Fundsquare that:

(i) it has the legal right and full power and authority to execute, deliver and exercise its rights and perform its obligations under the Agreement;

(ii) where applicable, all corporate actions required by it to validly and duly authorize the execution, delivery and exercise of its rights and the performance of its obligations under the Agreement have been, or will be, duly taken and will remain in full force and effect;

(iii) the execution and performance of the Agreement does not, and will not, breach its articles of association, other constitutional documents, any agreement or obligation by which it is bound or violate any applicable law;

(iv) it has not taken any corporate action, nor have any other steps been taken or legal proceedings been started, or threatened against it, to its knowledge, for bankruptcy, insolvency, liquidation, *sursis de paiement* (reprieve from payment), *gestion contrôlée* (controlled management), *concordat préventif de faillite* (general settlement or composition with creditors), reorganisation or similar Luxembourg or foreign laws affecting the rights of creditors generally or for the appointment of an insolvency receiver, administrator, administrative receiver, conservator, custodian, trustee or similar officer of such company; and

(v) the Agreement (when duly executed) will constitute legal, valid and binding obligations upon it, enforceable in accordance with its terms.

The Client declares to be aware of, and accept the related risks of the Internet, and to protect itself against the effect of computer piracy by adopting a suitable and secure computer configuration, including without limitation, a firewall and regularly updated antivirus software.

10. Indexation of the Cost & Fees

The Price shall be adjusted for the positive variations of the harmonized consumer price index in the Grand-Duchy of Luxembourg expressed in Euros, that is published by the Office for Official Publications of the European Communities in the EUROSTAT monthly bulletin – "Money, finance and the Euros: Statistical indicators" (the "**New Index**"), based on the index of the month preceding the execution date of the Agreement (the "**Initial Index**").

Except as otherwise provided for by law, this adjustment shall be calculated using the following formula:

$$\frac{\text{Price x New Index}}{\text{Initial Index}} = \text{adjusted Price}$$

but only to the extent that the result of the formula results in an increase of the Price.

11. Client's obligations

In addition to the timely payment of the invoices of Fundsquare, the Client is responsible for:

(i) immediately notifying Fundsquare of all changes to the data provided at the time of entering into the Agreement and to always keep its user account details complete, correct and up-to-date;

(ii) maintaining the secrecy of the Registration Information. The Client shall take all necessary measures to ensure complete confidentiality of the Registration Information and that each Authorised User shall choose and keep secure Registration Information for his use of the Services;

(iii) the use of Registration Information, being understood that any connection or communication established or made using Registration Information shall be deemed to have been established or made by the Client;

(iv) ensuring that it and its Authorised Users use the Services in accordance with the terms and conditions of this Agreement and Good Industry Practice and shall be responsible for any Authorised User's breach of this Agreement;

(v) notifying forthwith Fundsquare of any Improper Use, being understood that in such event, Fundsquare may suspend (a) the provision of the Services to the Client and (b) the Client's access to the Platform until the deactivation and/or cancellation of the Client's Registration Information and the attribution of new Registration Information to the Client;

(vi) the data and information provided by the Client to Fundsquare, its reliability, accuracy, authenticity and completeness, and more specifically, when carrying out a procedure or acts on behalf of a third party;

(vii) ensuring at all times that:

(a) each of the Client's Authorized Users is suitably qualified, adequately trained and capable of using the applicable Services;

(b) there is an adequate number of Client's Authorized Users to use the Services properly; and

(c) only those people who are authorised by the Client are involved in using the Services;

(viii) any act which may adversely affect or impede the ability of the Platform to function properly or the provision of the Services, including, without limitation, not overloading the bandwidth or transmitting on, or through, the Platform any element that could contain a bug, a virus, Trojan horse, logic bomb or any element liable to damage, intercept or interfere with all or part of the Platform;

(ix) equipping itself in an appropriate way, in accordance with Good Industry Practice, notably, in terms of computing, telecommunications and security, to have access to the Platform, to use them and to maintain all of this equipment. All costs and charges for equipment, communications, telecommunications and everything necessary for connection to, and use of, the Platform, as well as every necessary authorization, shall be borne by the Client.

The Client shall hold harmless and unconditionally indemnify Fundsquare, its directors, officers, agents, employees and its business partners to the full extent of any liability, loss, cost, claim, damage or expense including - but not limited to - reasonable attorneys' fees for the defence of all liabilities, costs, claims, damages and expenses by reason of any alleged or actual property damage or personal injury arising out of, as a result of, or in connection with, the Agreement, and due to any act or omission of the Client or its employees, agents or subcontractors.

12. Limitation of liability

Only the Client is responsible for the content, completeness and assurance of any report or data sent through the Platform, as well as for the full compliance with its obligations under clause 11. Fundsquare shall not incur any liability where such liability is linked to a breach by the Client of its obligations under this Agreement.

Fundsquare makes reasonable efforts ("obligation de moyens") to:

(i) ensure the availability of the Services, as described in clause 6);

(ii) provide correct translation and routing of messages;

(iii) guarantee the security of its IT system and the confidentiality of all Client data.

Fundsquare does not exclude or limit its liability:

(i) resulting from gross negligence or wilful misconduct; or

(ii) for death or personal injury resulting from its negligence, fraud or any other liability which may not by applicable law be excluded or limited.

Subject to the above, Fundsquare, its directors, managers, employees, subcontractors and agents shall not incur any liability whatsoever in connection with the provision of the Services under this Agreement, including any liability for direct or indirect damages, loss of profits, loss of revenue, loss of goodwill, loss of any software or data, loss of opportunity, loss of use of computer equipment, software or data, loss or waste of management or other staff time, or for any consequential or special loss.

In all events (whether arising under contract, the tort of negligence or strict liability - through indemnification or otherwise), Fundsquare's liability per Claim, and the Client's exclusive remedy, with respect to the Agreement, shall be limited to the lesser of:

(i) the direct and immediate loss or damage caused by Fundsquare; or

(ii) the amount of fees paid and due by the Client during the calendar year of the occurrence of Fundsquare's fault.

Neither party shall be responsible for delays in delivery or performance because of intervention of a Force Majeure event.

The party affected by the Force Majeure event shall give prompt notice thereof and, upon cessation of the Force Majeure event, take all reasonable actions to resume compliance with its obligations. If a delay in delivery or performance extends beyond thirty (30) calendar days, then either party may terminate the Agreement.

13. Duration and termination of the Agreement

This Agreement shall come into effect from the date of signature by the Parties. It shall remain valid until the 31st of December of the year of signature and for a period of three years thereafter (the "**Initial Term**").

Upon expiry of the Initial Term, this Agreement shall be automatically renewed for further periods of twelve (12) months, although each party may terminate the Agreement, with effect as of the term of the current period, by registered letter with acknowledgement of receipt that shall be received by the other party at least three (3) months prior to the term of that period.

However, without prejudice of the above provisions as well as the provisions of Luxembourg law, each of the parties may terminate the Agreement (without prejudice to any damages that it may claim) with immediate effect and without incurring any liability in the event of the occurrence of the following events:

(i) breach of any provision of the Agreement arising out of serious or wilful misconduct by one of the parties;

(ii) breach by one of the parties of a substantial provision of the Agreement (such as, without limitation, the failure of the Client to settle in a timely manner the invoices issued by Fundsquare); and

(iii) one party is in breach of a non-fundamental provision of the Agreement and, having been given written notice by the other party to remedy the default or failure, the default or failure is not, or cannot be, cured within thirty (30) days;

(iv) one of the Parties ceases to conduct its operations in the normal course of business, including the inability to meet its obligations as they mature, or if any proceedings under any applicable bankruptcy or insolvency laws are brought by or against a party, or a receiver/trustee for the party is appointed or applied for, or an assignment for the benefit of creditors is made by a party.

14. Intellectual Property

The Platform (all its elements including the layout), the Materials and the Services are protected by intellectual property laws, in particular the law of April 18, 2001 on copyright, related rights and databases, as amended from time to time, as well as the Benelux convention on intellectual property.

All rights of reproduction -complete or partial- in whatever form and by whatever means, are reserved, including downloadable documents.

Unless prior authorisation in writing is provided by Fundsquare, reproduction of the whole or any part of the Platform, on any medium whatsoever, is prohibited.

Clients may consult, download and print the documents and information available on the Platform, under the following conditions:

(i) documents may be used only for personal purposes or for the purpose of filing;

(ii) documents and information may not be modified in any way whatsoever; and

(iii) documents and information may not be disseminated by the Client outside the scope of the Platform.

Subject to the terms and conditions set forth under this Agreement, Fundsquare grants to the Client a non-exclusive, non-transferable, limited licence to access and use the Service and the Materials.

All rights implicitly or explicitly granted above, constitute a right of use and do not, under any circumstances, involve a transfer or assignment of intellectual property rights.

15. Intellectual Property Rights Indemnity

Fundsquare agrees to indemnify the Client from and against any and all claims of infringement of copyright, patents, trademarks, or other intellectual property rights affecting the Platform, Materials or the Services provided that:

- the Client shall not have done, permitted or suffered to be done anything which may have been or become an infringement of any rights in any such copyright, patent, trade mark or other rights; and
- the Client shall have exercised a reasonable standard of care in protecting the same and shall not have made or intimated any admission, settlement, opinion or undertaking that may be detrimental to Fundsquare's defence, failing which the Client shall indemnify Fundsquare against all actions, proceedings, costs, claims and expenses incurred in respect of such claims for infringement; and
- the Client undertakes that Fundsquare shall be given prompt notice of any claim made against the Client and Fundsquare shall have the right to defend any such claims and make settlements thereof at its own discretion; and
- the Client shall give such assistance as Fundsquare may reasonably require to settle or oppose any such claims; and
- the Client shall apply all reasonable endeavours to mitigate Fundsquare's exposure under this indemnity.
- In the event that any such infringement occurs or may occur, Fundsquare may at its sole option and expense:
- procure for the Client the right to continue using the Platform, Materials and Services or infringing parts thereof; or
- modify or amend the Platform, Materials or Services or infringing parts thereof so that the same becomes non-infringing; or
- replace the Platform, Materials or Services or infringing parts thereof by other items of similar capability; or
- withdraw the infringing parts of the Platform, Materials or Services and refund the sums paid by the Client in respect thereof, provided that such withdrawal shall not have a material impact on the operation of the Platform.

16. Data protection

Any Personal Data provided in the context of the Agreement for the provision of the Services and the administrative management of the Agreement will be processed in conformity with the Data Protection Law. Fundsquare will act as a data controller with respect to the Personal Data provided to it in the context of the Agreement.

Personal Data may be processed by Fundsquare in order to provide the Services, to manage client relationships and to meet its regulatory obligations including conducting due diligence and cooperating with competent authorities. Fundsquare shall be permitted to carry out an administrative follow-up on the Client and to identify the Client as a user of the Platform.

The Personal Data will be stored for as long as required for the requested Services (particularly for the advanced functionalities of the Platform) and to comply with legal data retention periods or, where required for Fundsquare to assert or defend against legal claims, until the end of the relevant retention period or until the claims in question have been settled.

Fundsquare may share the Personal Data with:

- Third-parties within Fundsquare's group of companies directly or indirectly involved in the performance of the Services;
- Relevant regulators and, more generally, any competent authority when Fundsquare is required to do so;
- Fundsquare's auditors where it is necessary as part of their auditing functions; and
- Third party service providers for mailing services and storage systems.

Fundsquare takes reasonable and appropriate technical and organizational security measures in order to:

- Store the Personal Data in secure databases or systems with restricted access; and
- Protect the Personal Data against loss, accidental or intentional misuse, alteration, destruction and access by unauthorized persons.

However, Fundsquare cannot be held liable for disclosure of Personal Data sent by e-mail or though other inherently unsecure communication means that are not part of the Platform.

Fundsquare will notify the Client without undue delay in the event Fundsquare becomes aware of any unauthorized or improper use, access or disclosure of the Personal Data, which is likely to result in a high risk to the Client's rights and freedoms.

In accordance with the Data Protection Law, the Client has the following rights with respect to the processing of the Personal Data:

- To access and, where applicable, to obtain copies of the Personal Data;
- To request the rectification or correction of the Personal Data if they are incomplete or incorrect;
- To require the deletion of the Personal Data, unless there is a legitimate reason for Fundsquare to justify storing them;
- To require that the processing of the Personal Data be limited; and
- To object to the processing of Personal Data. However, this may be an obstacle to entering into a relationship or to the contractual relationship continuing between the Client and Fundsquare.

To exercise these rights, the Client or the data subject may contact Fundsquare by email at dataprotection@fefundinfo.com.

Similarly, if any of the Personal Data provided to Fundsquare changes or becomes no longer up-to-date, the Client or the data subject should send an email to dataprotection@fefundinfo.com. Fundsquare will not be responsible for any losses arising from any inaccurate, inauthentic, deficient or incomplete Personal Data provided to Fundsquare.

17. DORA Compliance

For the purposes of Regulation (EU) 2022/2554 of the European Parliament and of the Council of 14 December 2022 ("**DORA**"):

- provided that:
  a) the Client qualifies as a financial entity under DORA; and
  b) Fundsquare is considered to be an ICT third-party service provider (as that term is defined in Article 3 DORA); and
- the parties acknowledge and agree that Fundsquare does not support critical and important functions of the Client,

the following provisions shall apply:

i) **Assistance in Relation to the Provision of the Services**

(a) Subject to the provisions of this Agreement, in the event of any delays or incidents in relation to the provision of the Services, Fundsquare undertakes to provide all reasonable assistance to the Client to minimise the impact of such delay or incident.

(b) Where additional work is required by Fundsquare to provide such assistance and costs apply, approval of the Client will be sought by Fundsquare in advance.

ii) **Location**

(a) The Services are provided, and Client's data, including personal data, will be processed, stored and accessed in Netherlands, Ireland, UK, Luxembourg, Switzerland, India, Australia, Czech Republic, Denmark, Poland, Germany France, Singapore and Hong Kong.

(b) Fundsquare will notify the Client in advance in the event of any change to the above locations.

iii) **Security**

Fundsquare shall implement and maintain appropriate measures to ensure the availability, authenticity, integrity, and confidentiality of all data processed, stored, or transmitted in connection with the Services (including personal data).

iv) **Cooperation With Competent Authorities**

Fundsquare acknowledges that the Client is a regulated entity and subject to certain regulatory requirements in relation to its third parties. Fundsquare undertakes to provide all reasonable cooperation in relation to requests from relevant competent authorities and resolution authorities, or persons appointed by them, in relation to the provision of the Services to the Client.

v) **Information And Communication Technology Security Awareness Programmes And Operational Resilience**

Upon reasonable request, including in relation to timescales, frequency, duration and appropriate access being provided, Fundsquare undertakes to participate in relevant Client training in relation to information and communication technology security awareness and in relation to operational resilience.

vi) **Assistance, Access, Recovery And Return Of Data**

(a) In the event of an ICT incident that is related to the Services, Fundsquare will provide assistance to the Client at no additional cost, or at a cost that is determined ex-ante.

(b) In the event of the insolvency, resolution or discontinuation of the business operations of Fundsquare or the termination of the contractual arrangements, Fundsquare undertakes to provide reasonable assistance where possible to ensure access, recovery and return to the Client, in an easily accessible format, of personal and non-personal data processed by the Client.

vii) **Termination**

(a) In addition to the termination rights in the Agreement, either party may terminate the Agreement immediately upon written notice in the event of a significant breach of Applicable Law by the other party.

(b) The Client may also terminate the Agreement with three (3) months' notice in writing in the event of any of the following circumstances where they cannot be cured within thirty (30) days of notification:

A. where the Client identifies circumstances that are deemed capable in its reasonable opinion of altering the performance of the Services, including material changes that affect the arrangement or the situation of Fundsquare;

B. where there are evidenced weaknesses in relation to Fundsquare's information and communication technology risk management, including in relation to how it ensures the availability, authenticity, integrity and, confidentiality of data, whether personal or otherwise sensitive data, or nonpersonal data;

C. where a competent authority indicates that it can no longer supervise the Client as a result of the conditions of, or circumstances related to, the Agreement.

18. Transfer and Assignment

Without prior written consent from Fundsquare, the Client cannot assign or sub-contract any rights and obligations from the Agreement to third parties.

Fundsquare may freely assign or sub-contract all or part of its rights and obligations in this Agreement to third parties. The Client shall be entitled to receive, upon its request, a list of the sub-contractors, if any, of Fundsquare.

19. Remedies and Waivers

No failure by Fundsquare to exercise, nor any delay by Fundsquare in exercising, any right or remedy hereunder shall operate as a waiver of any right or remedy hereunder, nor shall any single or partial exercise of any right or remedy, prevent any further or other exercise of any other right or remedy. The rights and remedies herein provided are cumulative and not exclusive of any rights or remedies provided by law.

20. Severability

If at any time any provision of the Agreement is declared invalid and unenforceable, then, to the fullest extent permitted by applicable law:

(i) the other provisions shall remain in full force and effect and shall be construed in order to carry out the intentions of the parties as fully as may be possible; and

(ii) the Parties hereto shall negotiate in good faith with a view to agreeing on the substitution of any such provision by a provision that is legal, valid, binding and enforceable, and that, to the extent practicable, most nearly approximates its economic effects and reflects the parties original intentions and purpose upon entering into the Agreement.

21. Confidentiality

Fundsquare and the Client hereby agree to keep the Agreement and its terms and conditions strictly confidential, even after termination of this Agreement, for any cause and for a period of five (5) years after such termination. However, the Client authorises Fundsquare to identify it as a user of the Platform.

22. Earlier agreements

This Agreement supersedes and replaces any earlier agreements which may have existed between the Parties.

23. Notices

All notices or other communications under or in connection with this Agreement shall be given in writing and,

unless otherwise stated, may be made by letter or facsimile. Any such notice will be deemed to be given as follows:

- if by letter, when delivered personally or on actual receipt; and
- if by facsimile, when the sender has received a positive transmission report.

However, a notice given in accordance with the above but received on a non-working day or after business hours in the place of receipt will only be deemed to be given on the next working day in that place.

Notices will be addressed:

- **if to Fundsquare**:

Fundsquare S.A., 6 Boulevard des Lumières,

Belvaux, 4369, Luxembourg

marked for the attention of: Head of Legal Department or at such other address as Fundsquare may hereafter designate by notice to the other Party hereto;

- **if to the Client**:

[Boundless S.à r.l, 24 rue Goethe, L-1637, Luxembourg]

Fax: [_____]

marked for the attention of: [Milo Guastamacchia]

or to such other address as the Client may hereafter designate to the other Party hereto.

24. Governing law and jurisdiction

This Agreement is governed by and constructed under Luxembourg laws. Fundsquare and the Client hereby agree that the courts of Luxembourg shall have exclusive jurisdiction to settle any dispute, which may arise out of, or in connection with, the Agreement and that accordingly any proceeding, suit or action arising out of, or in connection with, the Agreement may be brought in such courts.

IN WITNESS whereof, the Parties hereto have duly signed this Agreement on the date first above written, in as many original counterparts as there are Parties hereto.

SIGNED by or on behalf of
Fundsquare S.A.

Name:	Name:
Title:	Title:

SIGNED by or on behalf of BOUNDLESS S.à r.l.

Name: Milo Guastamacchia

Title: Manager

Name: Estelle N'Zoungou

Title: Manager

(Please provide the Authorized Signatories list for personnel authorized to act and sign on behalf of the Company for this agreement).